



CHAPTER xx.

An Act to authorise the urban district council of Slough A.D. 1911.
to purchase the undertaking of the Slough Waterworks
Company and to supply water within the urban district
of Slough and the neighbourhood thereof and for other
purposes in connexion therewith. [2nd June 1911.]

WHEREAS the urban district of Slough in the county of
Buckingham (in this Act called "the district") is under
the local government of the urban district council of Slough (in
this Act called "the Council"):

And whereas the Slough Waterworks Company (in this Act
called "the Company") were by the Slough Waterworks Act
1868 incorporated and authorised to construct waterworks and
to supply water within an area comprising the district and certain
parishes in the neighbourhood thereof:

And whereas by the Slough Waterworks Act 1875 (in this
Act called "the Act of 1875") the Slough Waterworks Act 1868
was repealed but it was provided that the Company should con-
tinue incorporated and that the capital thereof should be twenty
thousand pounds in two thousand shares of ten pounds each
and that the Company might borrow on mortgage up to five
thousand pounds and might maintain the said waterworks and
supply water within the said area:

And whereas by section 4 of the Water Orders Confirmation
Act 1896 so much of the Act of 1875 as authorised the Com-
pany to supply water within so much of the parish of Farnham
Royal as is included within the limits of supply as defined by
the Burnham and District Water Order 1896 was repealed:

A.D. 1911.

And whereas by the Slough Water Order 1901 confirmed by the Water Orders Confirmation (No. 2) Act 1901 the said area was extended and the Company were authorised to raise additional capital not exceeding in the whole fifteen thousand pounds and to borrow on mortgage in respect thereof sums not exceeding in the whole one-fourth part of the additional capital so raised :

And whereas by the Slough Water Order 1906 confirmed by the Water Orders Confirmation Act 1906 the said area was further extended and the Company were authorised to raise further additional capital not exceeding in the whole twenty thousand pounds and to borrow on mortgage in respect thereof sums not exceeding in the whole one-third part of the further additional capital so raised :

And whereas in pursuance of or under the provisions of section 6 of the South West Suburban Water Act 1908 a certain portion of the limits of supply of the South West Suburban Water Company was with the consent of the Company added to the limits of the Company for the supply of water :

And whereas by the Slough Waterworks Act 1910 (in this Act called "the Act of 1910") the limits of supply were further extended and further powers were conferred upon the Company and the construction of certain waterworks by the Company was sanctioned and confirmed :

And whereas the Company have constructed waterworks and are supplying water within their limits of supply :

And whereas by the Act of 1875 powers were conferred upon the Company to sell and the local board for the district of Slough (being the predecessors of the Council) to purchase by agreement the undertaking of the Company and for the transfer of the undertaking to and the vesting thereof in the local board and for the application of the purchase money and the dissolution of the Company :

And whereas by section 51 (Purchase of undertaking by urban district council of Slough) of the Act of 1910 it is provided as follows (that is to say) :—

"(1) If the urban district council of Slough (in this section called "the Council") shall introduce a Bill in the next available session of Parliament and bonâ fide promote the same for an Act for the purchase of the

undertaking of the Company the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase ;

A.D. 1911.

“(2) Such Bill shall make provision for the purchase price for the undertaking of the Company to be determined by agreement between the Council and the Company or failing agreement by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement. Provided that in the event of the same being determined by arbitration the arbitrators or umpire (as the case may be) in settling the amount of the said purchase price shall allow a sum at the rate of ten per centum as compensation for compulsory purchase and cost of reinvestment ;

“(3) Such Bill shall also make provision for the payment (in addition to the purchase price) of a sum of one thousand pounds by way of compensation to the directors of the Company for loss of office ;

“(4) Such Bill shall also make provision that the Council shall pay compensation to any officers and servants (other than directors) who have been in the regular employment of the Company for not less than five years before the passing of that Act who shall not be retained by the Council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed on the nineteenth day of April 1910 in respect of any abolition or loss of office or loss or diminution of salary or income or emoluments by reason of the transfer of the undertaking to the Council the amount of such compensation in default of agreement to be determined by arbitration. Provided that neither John Hugh Secker the present engineer of the Company nor any officer or servant who shall have been in the employment of the Company for ten years or upwards shall lose his right to compensation as aforesaid by reason of his declining to continue in the service of the Council ;

A.D. 1911.

“(5) Such Bill shall also provide that the Company shall sell to the Council and the Council shall purchase the stock-in-trade and stores of the Company as they stand on the day of the transfer at such price as shall be agreed upon between them or as failing agreement shall be determined by arbitration;

“(6) Such Bill shall also provide that the Council shall repay to the Company the taxed costs of the Bill for this Act and of the winding up of the Company”:

And whereas it is expedient that the water supply of the district should be under the control of the Council and that the undertaking of the Company should be transferred to and vested in the Council in manner provided by this Act and that further provision should be made in regard to the supply of water within the limits of this Act:

And whereas it is expedient that the Council should be authorised to borrow money for the purchase of the undertaking of the Company and for the other purposes in this Act specified:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas an absolute majority of the whole number of the Council at a meeting held on the twentieth day of October one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Slough Windsor and Eton Observer* a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas such resolution was published twice in the said *Slough Windsor and Eton Observer* and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-sixth day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed : A.D. 1911.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Slough Urban District Water Act 1911. Short title.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847 but this exception shall not apply in the Eton Rural District;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts; and

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

3. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

“The district” means the urban district of Slough;

“The Council” means the urban district council of the district;

A.D. 1911.

“The clerk” means the clerk of the Council;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“The Company” means the Slough Waterworks Company;

“The Act of 1875” means the Slough Waterworks Act 1875;

“The Act of 1910” means the Slough Waterworks Act 1910;

“The Company’s Acts” means the Slough Waterworks Acts and Orders 1875 to 1910;

“The Eton Council” means the council of the rural district of Eton;

“The undertaking of the Company” includes all the waterworks mains pipes machinery lands buildings and plant and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of their undertaking to the Council under the provisions of this Act except the books and papers relating exclusively to the shareholders in and the members and constitution of the Company and except the stock-in-trade and stores referred to in the section of this Act whereof the marginal note is “Purchase of stock-in-trade” and except cash in hand (other than consumers’ deposits) and at the Company’s bankers and any water rates rents or other moneys receivable on revenue account which the Company may be entitled to retain under the section of this Act whereof the marginal note is “Company to pay outgoings and be entitled to receipts until transfer”;

“Daily penalty” means a penalty for every day on which any offence is continued by a person after conviction thereof;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture

stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council; A.D. 1911.

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

4. The limits of the Council for the supply of water (in this Act called “the limits of supply”) shall be the existing limits of the Company namely The urban district of Slough and the parishes of Datchet Farnham Royal (except so much thereof as is included within the limits of supply defined by the Burnham and District Water Order 1896 confirmed by the Water Orders Confirmation Act 1896) Langley Upton-cum-Chalvey Stoke Poges and Wexham in the county of Buckingham and such portion of the parish of Horton in the said county as lies south of and within a distance of a quarter of a mile from the Bath Road and so much of the parish of Burnham in the said county as lies south of the Great Western Railway and so much of the parish of Fulmer in the said county as lies to the south of an imaginary line drawn at a distance of three hundred yards south of and parallel to the public road leading from Fulmer Gardens to Langley Corner and so much of the hamlet of Poyle in the parish of Stanwell in the county of Middlesex as lies to the west of the Wyrardisbury River Provided that nothing in this section contained shall entitle the Council to sink any well or pump water from any well in the parish of Burnham. Limits of supply.

A.D. 1911.

TRANSFER OF UNDERTAKING.

Company to
sell their
undertaking
to Council.

5.—(1) The Company shall sell to the Council and the Council shall purchase the undertaking of the Company for such price or consideration being a sum in gross and on such terms and conditions as may be agreed upon between the Company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the Council and the expression “lands” shall mean the undertaking of the Company. Provided that in the event of the said price or consideration being determined by arbitration the same shall not be any larger by reason of the issue of any capital or the borrowing of any money subsequently to the first day of May one thousand nine hundred and eleven without the consent of the Council than it would have been if such capital had not been issued or such money had not been borrowed.

(2) Within six months after the passing of this Act the Council shall serve upon the Company notice of their intention to purchase the undertaking of the Company.

(3) In settling the amount to be awarded to the Company for such price or consideration the arbitrators or their umpire shall award as part of such price or consideration such a sum of money as they or he shall determine to be payable in satisfaction of the perpetual debenture stock of the Company outstanding at the date of the passing of this Act and the holders of such debenture stock shall be entitled to appear in any proceedings taken for the determination of such price as aforesaid.

(4) In settling the amount to be awarded to the Company for such price or consideration the arbitrators or their umpire (as the case may be) shall allow a sum at the rate of ten per centum as compensation for compulsory purchase and cost of reinvestment.

(5) In addition to the purchase price or consideration the Council shall pay to the Company a sum of one thousand pounds by way of compensation to the directors of the Company for loss of office.

(6) The Council shall also repay to the Company—

A.D. 1911.

- (A) The taxed costs of the Bill for the Act of 1910:
- (B) The costs incurred by the Company in obtaining clauses and amendments for their protection in the Bill for this Act:
- (c) The costs of the Company of and incident to the transfer of the undertaking of the Company and the winding-up of the Company:
- (D) The actual amount expended by the Company with the consent of the Council on capital account in pursuance of the provisions of the section of this Act the marginal note of which is "Maintenance of undertaking by Company till transfer."

The costs referred to under paragraphs (A) and (B) of this subsection shall be taxed by the taxing officer of the House of Lords or of the House of Commons and those under paragraph (c) of this subsection by a taxing master of the Supreme Court of Judicature in England.

(7) The Council shall pay the purchase money to the Company on such day as may be agreed between the Council and the Company or failing agreement on the twenty-fourth day of March the twenty-third day of June the twenty-eighth day of September or the twenty-fourth day of December which shall first happen after the expiration of two months from the determination by agreement in writing or by the award of the arbitrators or umpire of the amount of the purchase money and upon such payment the undertaking of the Company shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council free from all charges debts and liabilities upon or affecting the same and such transfer and vesting are in this Act referred to as "the transfer."

(8) The production of a King's Printers' copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the Company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer.

6. The Company shall sell to the Council and the Council shall purchase the stock-in-trade and stores of the Company as they stand on the day of transfer at such price as shall be

Purchase of
stock-in-
trade.

A.D. 1911. agreed upon between the Company and the Council or as failing agreement shall be determined by a valuer to be agreed upon between the parties or failing agreement to be nominated by the President of the Surveyors' Institution upon the application of either party.

Compensa-
tion to
officers.

7. The Council shall pay compensation to any officers or servants (other than directors) who have been in the regular employment of the Company for not less than five years before the passing of this Act who shall not be retained by the Council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed on the nineteenth day of April one thousand nine hundred and ten in respect of any abolition or loss of office or loss or diminution of salary or income or emoluments by reason of the transfer of the undertaking of the Company to the Council the amount of such compensation in default of agreement to be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 Provided that neither John Hugh Secker the present engineer of the Company nor any officer or servant who shall have been in the employment of the Company for ten years or upwards shall lose his right to compensation as aforesaid by reason of his declining to continue in the service of the Council.

Receipt for
purchase
money.

8. The receipt in writing of three directors of the Company for any money to be paid to the Company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the Company.

Winding-up
of Company.

9.—(1) From and after the transfer the Company shall subsist only for the purpose of paying their debts and liabilities and of receiving and recovering the sums payable to them as

provided by this Act and distributing the same and the purchase money and other moneys payable to the Company in accordance with the provisions of this Act and for winding up the affairs of the Company and carrying into effect the purposes of this Act so far as they relate to the Company and the directors of the Company who are in office at the transfer and the survivors or survivor of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section. A.D. 1911.

If the number of directors of the Company be reduced by death resignation or otherwise below three before the completion of such winding-up the continuing directors shall from time to time choose a shareholder or shareholders of the Company to fill the vacancy or vacancies so caused.

(2) On the transfer the Company shall subject to the provisions of this Act be wound up under and in accordance with the provisions of and in the same manner and with the same incidents as if the Company were a company registered under the Companies (Consolidation) Act 1908 and had on the transfer duly passed a special resolution requiring the Company to be wound up voluntarily and for the purposes of such winding up the Company shall from and after the passing of this Act be deemed to be registered in England under the said Act and for the purpose of calling and holding meetings and passing resolutions and other matters incident to such winding-up resolutions of meetings of the Company convened and held in pursuance of and in accordance with the provisions contained in the Act of 1875 may and shall take effect as resolutions of a company duly registered and all moneys paid by the Council to the Company shall be applied by the liquidator as part of the assets of the Company.

(3) After the transfer and until the Company shall be finally wound up and dissolved the Company shall be entitled to retain the register of shareholders and other books relating solely to the holders of shares in and to the constitution of the Company and shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the Company to the date of the transfer and for all other reasonable purposes in relation to the winding-up of the

A.D. 1911. Company and upon the winding-up of the Company the said books retained by them (other than such of the books of the Company as relate exclusively to the shareholders in and the members and constitution of the Company) shall be handed over to the Council.

(4) On the completion of the winding-up of the affairs of the Company in accordance with the provisions of this Act the Company shall by virtue of this Act be dissolved.

Company to
pay out-
goings and
be entitled
to receipts
until trans-
fer.

10. The Company shall bear and pay all outgoings of every kind and shall be entitled to all receipts from their undertaking up to the date of the transfer and as from that date all outgoings shall be borne and paid by the Council. Provided that nothing in this Act contained shall entitle the Company to retain for their own benefit so much of any water rates or rents or other payments paid or payable in advance as shall be attributable to any period after the transfer but such rates rents or other payments shall be apportioned and so much thereof as is attributable to any period after the transfer shall be paid over by the Company to the Council.

Maintenance
of under-
taking by
Company
till transfer.

11. Until the transfer the undertaking of the Company shall be maintained and carried on by the Company as heretofore in the ordinary course of business with all due care but the Company shall not without the previous consent of the Council raise any further capital or make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking.

Liabilities
to be de-
frayed by
Company.

12. All debts and liabilities secured upon or affecting the undertaking or due from or payable by the Company which at the date of the transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the Company and the Company shall indemnify the Council against the same and if at the date of the transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not passed.

13. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the undertaking of the Company and in force at the date of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the Company the Council had been a party thereto.

A.D. 1911.

Contracts of Company to be binding on Council.

14. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the Company shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Council.

Books and documents to remain evidence.

15. The following sections of the Slough Waterworks Acts and Orders 1875 to 1910 shall after the transfer apply as if the Council were therein named instead of the Company (that is to say):—

Repeal of Acts and Orders relating to Company with certain exceptions.

The Act of 1875—

Section 1 (Title of Act);

Section 3 (Provisions of certain general Acts incorporated) so far as regards the Lands Clauses Consolidation Acts 1845 1860 and 1869 and the Waterworks Clauses Acts 1847 and 1863;

Section 4 (Interpretation of terms);

Section 37 (Company empowered to maintain existing waterworks);

Section 39 (Owner &c. may grant easements);

Section 40 (Rates for supply of water);

Section 42 (Company and Great Western Railway Company may enter into contracts for supply of water);

Section 43 (In the event of the Company diminishing or taking away the supply of water of the Great Western Company they are to afford a supply to that company);

Section 48 (Limitation of pressure);

Section 49 (Water may be supplied by agreement):

A.D. 1911.

The Slough Water Order 1901—

Article 1 (Short title);

Article 7 (Where Undertakers not furnishing sufficient supply local authority or Company may supply):

The Slough Water Order 1906—

Article 1 (Short title);

Article 8 (Where Undertakers not furnishing sufficient supply local authority or Company may supply);

Article 28 (Water rates to be calculated upon rateable value after 1st January 1909);

Article 29 (For protection of Eton Rural District Council);

Article 30 (For protection of Crown):

The Act of 1910—

All the sections of that Act other than sections 4 39 41 42 43 44 45 49 50 51 and 52 Provided that section 25 (Byelaws for preventing waste of water) shall be read as if subsections (3) and (4) were omitted therefrom and as if the words “and the provisions with respect “ to byelaws contained in sections 182 to 186 of the “ Public Health Act 1875 shall apply to all byelaws “ so made ” were added at the end of subsection (2) And provided also that section 32 (Power to remove meters and fittings) shall be read as if the word “ clerk ” were substituted for the word “ secretary ”:

The remaining sections of the Slough Waterworks Acts and Orders 1875 to 1910 not incorporated or applied by this Act are hereby repealed as from the transfer.

SUPPLY OF WATER.

Maintenance
of works of
Company
after trans-
fer.

16. After the transfer the Council may maintain continue repair renew carry on alter and extend the works comprised in the undertaking of the Company and may use the same for the purpose of supplying water in pursuance of this Act.

Minimum
rate for
supply of
water for
domestic
purposes.

17. Notwithstanding anything in section 40 (Rates for supply of water) of the Act of 1875 the Council shall not be compellable to give a supply of water for domestic purposes for a less sum than eight shillings and eightpence per annum.

18. The rate or charge for the supply by the Council of water for cleansing sewers and drains for cleansing and watering streets and other sanitary purposes shall not exceed one shilling per thousand gallons.

A.D. 1911.
Supply for
sanitary pur-
poses.

19. The rates charged by the Council for the supply of water for domestic purposes to premises situate within such of the parishes in the Eton Rural District as are comprised in the limits of supply shall not exceed the rates for the time being charged by the Council for a corresponding supply to premises of the same rateable value situate within the district. Provided always and it is hereby expressly enacted that the Council may charge for the supply of water for domestic purposes to premises situate in any portion of the limits of supply which is at a height exceeding one hundred and forty feet above Ordnance datum an additional sum not exceeding twenty-five per centum upon the rates chargeable in the rest of the limits of supply. Such additional charge however in no case to exceed together with the ordinary rates charged for domestic supply the maximum charges authorised by this Act or the provisions incorporated therein.

Charges for
domestic
supply in
Eton Rural
District.

20. Subject to the provisions of this Act the Council shall have and may exercise the powers with respect to the breaking up of streets and be subject to the liabilities and obligations contained in sections 28 to 34 of the Waterworks Clauses Act 1847 in and over so much of the Bath Road as adjoins or abuts upon the limits of supply.

Powers with
respect to
part of Bath
Road outside
limits of
supply.

21. The owner of any dwelling-house within the district which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Occupation
of houses
without
proper water
supply.

FINANCIAL PROVISIONS.

22.—(1) The Council may independently of any other borrowing power borrow at interest any sum or sums of money for the following purposes not exceeding the respective amounts following (that is to say):—

Power to
borrow.

(A) For the purchase of the undertaking of the Company and for defraying the costs and expenses incident to

A.D. 1911.

such purchase and to the transfer of such undertaking to the Council (other than the costs of this Act) such sum or sums as may be necessary;

- (B) For paying the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act" the sum requisite for that purpose;

and with the consent of the Local Government Board such further money as may be necessary for the extension of mains for working capital or for any of the purposes of this Act or of the water undertaking of the Council.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of their water undertaking and (if necessary) the district fund and general district rate.

Certain
provisions
of Public
Health Act
not to apply.

23. In calculating the amount which the Council may borrow under the provisions of the Public Health Acts any sums which the Council may borrow under or for the purposes of this Act shall not be reckoned and the powers of the Council of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Mode of
raising
money.

24. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions
as to mort-
gages.

25. The provisions of sections 236 237 and 238 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall apply in the case of all mortgages granted by the Council under this Act as if they were with the necessary modifications re-enacted in this Act.

26. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

A.D. 1911.

Protection of
lenders from
inquiry.

27. All moneys borrowed by the Council under the authority of this Act shall be paid off within the periods herein-after respectively mentioned (in this Act referred to as "the prescribed period") (that is to say):—

Repayment
of borrowed
money.

As to moneys borrowed for the purposes (A) in the section of this Act whereof the marginal note is "Power to borrow" within forty-five years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (B) in the said section mentioned within five years from the passing of this Act;

and with respect to moneys borrowed by the Council under the authority of this Act with the consent of the Local Government Board within such period not exceeding sixty years as that Board may prescribe.

28. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Mode of
payment off
of money
borrowed.

29.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

Sinking
fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called "a non-accumulating sinking fund"; or

A.D. 1911.

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

A.D. 1911.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

A.D. 1911.

Return
to Local
Government
Board as to
repayment
of debt.

30.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such a return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set aside any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in

such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1911.

31.—(1) The Council shall have power—

Power to
re-borrow.

- (A) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

32. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan borrowed given or issued by them may be subject but the receipt of the person in whose

Council not
to regard
trusts.

A.D. 1911. name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Appoint-
ment of
receiver.

33.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Application
of revenue.

34. The Council shall apply all money received by them in respect of their water undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed for the purposes of the undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking;

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at

compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

A.D. 1911.

And as to so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith the Council shall divide the same between the Council and the Eton Council in the proportion of fifteen per centum to the Eton Council and eighty-five per centum to the Council and the amounts so divided shall be carried to the credit of the district funds of the said respective Councils.

35. The Eton Council shall have the same right of inspection of accounts of the Council relating to their water undertaking and of taking copies or extracts therefrom as the ratepayers of the district have.

Inspection of
accounts.

36. Any deficiency in the revenues or receipts of the Council on account of their water undertaking shall be made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

Deficiency in
receipts to
be made
good out of
district fund.

37. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Application
of money
borrowed.

A.D. 1911.

Application
of moneys
arising from
sale of lands.

38. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands or premises or any interest therein or by way of fine or premium on any lease of lands or premises made under the authority of this Act or the provisions incorporated therein and any other moneys received by the Council on capital account under this Act or the said incorporated provisions in or towards paying off any moneys borrowed and for the time being owing by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council. Provided that such moneys received shall not be applicable to the payment of instalments appropriations or annual repayments except to such extent and upon such terms as may be approved by the Local Government Board.

Expenses of
execution of
Act.

39. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund and general district rate.

Separate
accounts to
be kept and
audited.

40.—(1) The Council shall keep the accounts in respect of their water undertaking separate from all their other accounts distinguishing therein capital from revenue.

(2) Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committee and officers under this Act and to the audit of such accounts.

MISCELLANEOUS.

Sale of por-
tion of under-
taking out-
side district.

41. If at any time after the transfer any local authority whose district is, beyond the district of the Council but as to the whole or any part thereof within the limits of supply shall give not less than six months' notice in writing to the Council of their desire to purchase such portion of the water undertaking of the Council as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the water undertaking of the Council (except the wells reservoirs mains and pipes or other works or apparatus which shall be necessary for supplying with water any other

part of the limits of supply) and to supply water within such district then it shall not be lawful for the Council to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the Council shall sell and such local authority shall purchase the portion of the water undertaking of the Council (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as the same may be otherwise provided for by Parliament The Council shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under this Act Provided that after the completion of such purchase all obligations on the part of the Council to supply water within the district of the purchasing authority shall cease and determine.

A.D. 1911.

42. The following provisions for the protection of the county council of the administrative county of Middlesex (in this section referred to as "the county council") shall have effect as regards the alteration improvement enlargement extension renewal or reconstruction of existing works unless otherwise agreed between the Council and the county council (that is to say):—

For protec-
tion of
county coun-
cil of Middle-
sex.

- (1) All mains pipes and works to be laid in or along any main road or in or upon or across any county or main road bridge shall be laid in such position in the same or at the side thereof as the county council in writing under the hand of their surveyor may reasonably direct:
- (2) The notice required by section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any main road or any county or main road bridge or its approaches be not less than fourteen days and in all other cases not less than seven clear days:
- (3) The plan required by section 31 of the last-mentioned Act shall as regards any county or main road bridge be on a scale of not less than eight feet to an inch

A.D. 1911.

and in respect of any main road or bridge approach on a scale of not less than $\frac{1}{2500}$ and in such case of a bridge such plans shall be accompanied by sections to suitable scales to show clearly the proposed works and shall be delivered to the county council or their surveyor by the Council not less than in the case of a bridge or approaches one month and in all other cases (except for the laying connecting or repairing of consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst in which case notice shall be immediately given thereof) seven days before the Council commence to open or break up any main road or interfere with any county or main road bridge or other property of the county council for the purpose of executing the works:

- (4) Nothing in this Act shall authorise the Council to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor to the county council. Such consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine:
- (5) Nothing in this Act shall interfere with the right of the county council to alter the level of or deviate drain widen reconstruct or improve in any manner they think fit any main road in or along which any mains pipes or works of the Council shall have been laid and the Council shall with all convenient speed on receiving notice in writing under the hand of the clerk or surveyor to the county council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the county council shall repay to the Council the expense of any such alteration deviation improvement or other work of the county council. Provided that during the alteration deviation draining widening reconstruction or improvement of such main road the county council shall when reasonably

A.D. 1911.

necessary at the like cost afford all reasonable facilities for temporarily carrying such mains pipes or works along the main road so as not to interrupt the continual supply of water or to diminish the pressure of such supply through such mains or pipes :

- (6) Nothing in this Act shall interfere with the right of the county council at any time or times to remove alter widen raise repair or rebuild any county or main road bridge or the roadway over the same or the approaches thereto over near or attached to which any mains pipes or works of the Council are carried in the same manner as they might have removed altered widened raised repaired or rebuilt such bridge or the roadway over the same or the approaches thereto if this Act had not been passed and such mains pipes or works had not been laid over or near or attached to such bridge and the county council shall not make compensation to the Council for any expense or loss to which the Council may be put in consequence of any such removal alteration rebuilding widening or raising or repairing or rebuilding and in the event of any such bridge or the roadway over the same or the approaches thereto over or near or attached to which any such mains pipes or works are laid being removed altered rebuilt widened raised repaired or rebuilt as aforesaid the Council shall at their own cost in all things alter the position of any works by which such mains pipes or works are carried over or near or attached to such bridge or the roadway over the same or the approaches thereto as aforesaid. Provided that during the removal alteration widening raising or repairing or rebuilding of such bridge or the roadway over the same or the approaches thereto as aforesaid the county council shall when reasonably necessary afford all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continual supply of water or to diminish the pressure of such supply through such mains or pipes and that the Council shall reimburse the county council all reasonable expenses incurred by the county council in affording such facilities :

A.D. 1911.

- (7) All works shall be so executed by the Council as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Council shall not break up at any one time a greater length than one hundred yards of any main road :
- (8) Where any mains pipes or other works of the Council being made of cast iron are to be laid or constructed beneath the surface of any main road or county or main road bridge the same shall if possible be laid or constructed at such a depth that not less than 2 feet 6 inches shall intervene between the surface of such road or bridge and the upper surface of such mains pipes or works. Provided that if the Council lay steel mains or pipes instead of cast-iron mains or pipes the depth to intervene between the surface of such road or bridge and the upper surface of such mains or pipes need not exceed two feet. Any difference as to the possibility of so laying or constructing any such mains pipes or works shall be determined by arbitration as herein-after in this section provided :
- (9) If any difference arises at any time between the county council and the Council touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by the arbitration of an engineer to be agreed upon between the county council and the Council and failing agreement to be appointed by the President for the time being of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to the arbitration.

For further
protection
of county
council of
Middlesex.

43. Notwithstanding anything in the Slough Waterworks Acts and Orders 1875 to 1910 the Public Health Acts or in any Act relating to the Council the following provisions shall have effect for the protection of the county council of Middlesex (in this section called "the county council") unless

otherwise agreed in writing between the Council and the county council :— A.D. 1911.

- (1) The Council shall not without the consent in writing of the county council sell or supply water for use eastward of an imaginary straight line drawn due north and south through the westernmost part of the Staines Reservoir or at a distance exceeding seven miles measured from the parish church of Slough:
- (2) The Council shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired or to be acquired by them other than the lands in the parishes of Datchet and Slough specified or referred to in section 8 of the Act of 1910 unless the well and works and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

44. Where any notice or demand under this Act or the provisions of the Company's Acts incorporated therein requires authentication by the Council the signature thereof by the clerk or other duly authorised officer of the Council shall be a sufficient authentication. Notices demands orders and other documents required or authorised to be served under this Act or the provisions incorporated therein may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Authentica-
tion and
service of
notices &c.

45. Penalties imposed under this Act and the Acts wholly or in part incorporated herewith for one and the same offence shall not be cumulative.

Penalties not
cumulative.

46. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

A.D. 1911.

Penalties to
be paid to
treasurer.

47. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or the provisions of the Company's Acts incorporated therein or any byelaw thereunder shall be paid to the treasurer of the Council and carried by him to the credit of the district fund.

Informations
by whom to
be laid.

48. Save as otherwise in this Act specially provided all informations and complaints under or for the breach of any of the provisions of this Act or the provisions of the Company's Acts incorporated therein or of any byelaw made thereunder may be laid by any officer of the Council duly authorised in that behalf or by the clerk.

Recovery of
demands in
county court.

49. Proceedings for the recovery of any demand made under the authority of this Act or the provisions of the Company's Acts incorporated therein whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Contents of
summons.

50. Where the payment of more than one sum by any person is due under this Act or any of the Acts or Orders relating to the Council any summons or warrant issued for the purposes of such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Judges not
disqualified.

51. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or the provisions of the Company's Acts incorporated therein by reason of his being liable to any rate.

Persons act-
ing in execu-
tion of Act
not to be
personally
liable.

52. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever acting under the direction of the Council shall if the matter or thing be done or the contract be entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Council or clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Council.

53.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

A.D. 1911.
Inquiries by
Local
Government
Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

54. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Crown
rights.

55. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto and also the costs charges and expenses incurred by the Council in relation to their opposition to the Bill promoted by the Company in the session 1910 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

Costs of Act.

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